

An Act

ENROLLED HOUSE
BILL NO. 3431

By: Wilk, Woolley, Gise, Adams,
Hill, Wolfley, and Staires
of the House

and

Gillespie and Deevers of
the Senate

An Act relating to ownership of land; amending 60 O.S. 2021, Section 121, as last amended by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025, Section 121), which relates to foreign ownership of land; modifying entities prohibited to own land; prohibiting certain entities from leasing land or critical minerals; updating statutory language; and providing an effective date.

SUBJECT: Ownership of land

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 60 O.S. 2021, Section 121, as last amended by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025, Section 121), is amended to read as follows:

Section 121. A. As used in Sections 121 through 127 of this title:

1. "Deed" means any instrument in writing whereby land is assigned, transferred, or otherwise conveyed to, or vested in, the person coming into title or, at his or her direction, any other person;

2. "Foreign government adversary" means a government other than the federal government of the United States, the government of any state, political subdivision of the state, tribe, territory, or possession of the United States and designated by the United States

Secretary of State as hostile or a Country of Particular Concern (CPC);

3. "Foreign government enterprise" means a business entity, sovereign wealth fund, or state-backed investment fund in which a foreign government adversary holds a controlling interest;

4. "Foreign government entity" means a government other than the federal government of the United States, the government of any state, political subdivision of the state, tribe, territory, or possession of the United States; and

5. "Land" means the same as defined in Section 6 of this title, but shall not include oil, gas, other minerals, or any interest therein.

B. No alien or any person who is not a citizen of the United States, foreign terrorist organization (FTO) as designated by the United States Secretary of State pursuant to 8 U.S.C., Section 1189, Specially Designated National (SDN) as designated by the United States Department of the Treasury's Office of Foreign Assets Control, or foreign government adversary shall acquire title to ~~or~~, own, or lease land or critical minerals, as determined by the United States Geological Survey, in this state either directly or indirectly through a business entity, trust, or foreign government enterprise, except as hereinafter provided, but they shall have and enjoy in this state such rights as to personal property as are, or shall be, accorded a citizen of the United States under the laws of the nation to which such alien belongs, or by the treaties of such nation with the United States, except as the same may be affected by the provisions of Section 121 et seq. of this title or the Oklahoma Constitution ~~of this state~~. Provided, however, the requirements of this subsection shall not apply to a business entity that is engaged in regulated interstate commerce or has a national security agreement with the Committee on Foreign Investment in the United States (CFIUS) in accordance with federal law.

C. On or after November 1, 2023, any deed recorded with a county clerk shall include as an exhibit to the deed an affidavit executed by the person, the person's attorney-in-fact, a court-appointed guardian or personal representative, an authorized officer of the entity, or trustee of the trust coming into title attesting that the person, business entity, or trust is obtaining the land in compliance with the requirements of this section and that no funding source is being used in the sale or transfer in violation of this

section or any other state or federal law. A county clerk shall not accept and record any deed without an affidavit as required by this section which is duly notarized pursuant to Title 49 of the Oklahoma Statutes. The requirements of this subsection shall not apply to a:

1. Deed which, without additional consideration, confirms, corrects, modifies, or supplements a deed previously recorded;

2. Deed made by a grantor to cure a defect in title or effectuate a disclaimer of interest in real property;

3. Transfer-on-death deed made by a grantor designating a grantee beneficiary pursuant to the Nontestamentary Transfer of Property Act, Section 1251 et seq. of Title 58 of the Oklahoma Statutes;

4. State or federal court order in an action to quiet title or to cure a defect in title;

5. State or federal court order or decree in probate, partition, quiet title, and divorce actions;

6. Deed which secures a debt or other obligation, or which releases such property as security for a debt or other obligation;

7. Deed of dedication to the public; or

8. Deed in favor of the United States or any of its political subdivisions, a state or any of its political subdivisions, or a tribe.

The applicable exemption shall be shown on the face of the deed prior to the recording of the deed and no affidavit shall be required.

D. The Attorney General shall promulgate a separate affidavit form for individuals and for business entities or trusts to comply with the requirements of this section. The Attorney General may establish additional exemptions which the Attorney General deems necessary to substantially comply with the requirements of this section. The county clerk may accept an affidavit in substantial compliance with the affidavit form promulgated by the Attorney General.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____